Meridian Global Infrastructure Partners III — Sovereign Investor Side Letter: Approved Redlines

Clause-library master · Round 4 language approved 12 September 2025 · Anduin Legal & Compliance

This extract records the compromise language agreed between Meridian Global Infrastructure GP III, L.P. (the "General Partner"), for Meridian Global Infrastructure Partners III, L.P. (the "Partnership"), and two sovereign wealth fund investors, referred to here as Sovereign Investor A (Commitment US$80,000,000) and Sovereign Investor B (Commitment US$35,000,000) (each, a "Sovereign Investor"). Counsel to the General Partner was Halvorsen Pryce LLP; counsel to both Sovereign Investors was Ashcombe Lim LLP. Capitalized terms not defined here have the meanings given in the Partnership Agreement. Sections 2 and 3 are pre-approved for reuse with any Governmental Investor. Sections 4 to 6 amend the Partnership's MFN policy.

Section 1. Redline History

Round	Circulated	Proposed by	Change	Outcome
1	25 Aug 2025	Ashcombe Lim LLP	Struck the investor indemnity (Subscription Agreement Section 6.2) and the submission to jurisdiction; asked for MFN visibility of every fee term granted to any LP	Rejected by the General Partner
2	2 Sep 2025	Halvorsen Pryce LLP	Waived Section 6.2 for the Sovereign Investors in an untagged side-letter clause; global fee visibility left open	Withdrawn: electable by every LP at US$25M or more
3	3 Sep 2025	GP counsel on Anduin's clause-library draft	Sovereign Immunity Reservation Clause (Section 2); set-off and cap in place of indemnity (Section 3); both excluded from MFN	Accepted in principle on 8 Sep; Sovereign Investor B asked for US$50M+ fee visibility
4	9 Sep 2025	Anduin Legal, agreed by both counsel	MFN fee disclosure split into US$25M and US$50M+ brackets with affiliate aggregation (Section 4)	Approved 12 Sep 2025

Section 2. Sovereign Immunity Reservation Clause

2.1 Approved Text

(a) Nothing in the Partnership Agreement, the Subscription Agreement or this Side Letter constitutes, or shall be construed as, a waiver by the Investor of any immunity from suit, jurisdiction, attachment

(before or after judgment) or execution to which it or its assets may be entitled under applicable law, including, to the extent the Investor is a foreign state or an agency or instrumentality of a foreign state, the U.S. Foreign Sovereign Immunities Act of 1976 (28 U.S.C. §§1330 and 1602–1611); all such immunities are expressly reserved.

(b) The Investor acknowledges that its obligations to make Capital Contributions when called, to return distributions when the Partnership Agreement requires it, and to bear amounts set off under Section 3 (the "Commercial Obligations") are undertaken in its capacity as a commercial investor and remain binding in accordance with their terms notwithstanding clause (a).

(c) Clause (a) does not limit any right or remedy of the General Partner that is exercised against the Investor's Interest within the Partnership, including the Defaulting Partner remedies of the Partnership Agreement: suspension of rights, set-off against distributions, and forced sale or transfer of the Interest.

(d) This Section 2 is granted by reason of the Investor's status and is an Excluded Provision under Section 6(b).

Drafting note: The reservation records the Investor's position. It neither concedes nor contests whether an FSIA exception (for example the waiver or commercial-activity exceptions in 28 U.S.C. §1605(a)(1)–(2), or the execution exceptions in §1610) would apply; that question is for a court. The General Partner relies on clause (c), because remedies exercised inside the Partnership need no court.

Section 3. Indemnification Carve-Out

(a) Section 6.2 of the Subscription Agreement (Investor Indemnity) does not apply to the Investor, and the Investor gives no indemnity to the Partnership, the General Partner or any third party.

(b) The Investor shall notify the General Partner promptly if any representation in its Subscription Agreement ceases to be true.

(c) If a representation of the Investor is untrue when given or repeated, the General Partner may, to the extent permitted by applicable law, set off the resulting losses, costs and expenses of the Partnership against distributions otherwise payable to the Investor, and may require a transfer or withdrawal of the Interest under the Partnership Agreement.

(d) Amounts recoverable under clause (c) shall not exceed the value of the Investor's Interest (its capital account plus undistributed proceeds) and are recovered solely from that Interest. Nothing in this Section 3 requires a payment from any other asset of the Investor.

(e) This Section 3 is an Excluded Provision under Section 6(b).

Section 4. MFN Fee Disclosure Brackets

4.1 Brackets

Each Limited Partner whose Aggregate Commitment is US$25,000,000 or more is an "Eligible Investor" and is assigned an MFN Bracket. Each Side Letter provision carries the bracket of the Limited Partner to which it was granted, or the US$25M Bracket if that Limited Partner is not an Eligible Investor (its "Provision Bracket").

MFN Bracket	Aggregate Commitment	Fee terms disclosed in the MFN Compendium	Electable provisions
None	Below US$25,000,000	None	None

MFN Bracket	Aggregate Commitment	Fee terms disclosed in the MFN Compendium	Electable provisions
US$25M Bracket	US$25,000,000 to US$49,999,999	Fee, expense and fee-offset terms granted to Limited Partners with Aggregate Commitments below US$50,000,000	Electable Provisions with a US$25M Provision Bracket
US$50M+ Bracket	US$50,000,000 or more	All fee, expense and fee-offset terms, with Excluded Provisions marked as such	Electable Provisions in either bracket granted to a Limited Partner whose Aggregate Commitment does not exceed its own

4.2 Aggregation

Commitments of Limited Partners under common control or common discretionary management, including governmental vehicles owned or controlled by the same state, ministry or sovereign fund, are aggregated if identified in the Subscription Documents. The admission of, or a Commitment increase by, any member redetermines the bracket of every member. A bracket is reduced only on a reduction or Transfer of Commitment.

4.3 Anonymity

Fee terms are disclosed by rate, basis and Provision Bracket only, without naming the recipient or its Commitment.

Section 5. Election Procedure

(a) Within 60 days after the Final Closing Date, the General Partner delivers to each Eligible Investor an MFN Compendium limited to its bracket under Section 4.1, stating each provision's Provision Bracket and whether it is an Electable Provision.

(b) An Eligible Investor may elect any Electable Provision available to it by written notice within 30 days after delivery (the "Election Period"); the electronic election form on the investor portal suffices.

(c) An elected provision is available only with every condition and obligation attached to it in the original Side Letter, and applies prospectively from the General Partner's written confirmation.

(d) Provisions not elected within the Election Period are irrevocably waived.

(e) The Administrator records each Eligible Investor's bracket before the MFN Compendium is generated, and no Compendium is issued to a Limited Partner without a recorded bracket.

Section 6. Excluded Provisions

The following are disclosed where Section 4.1 requires it but are not electable in any bracket:

(a) any provision relating to a Limited Partner's particular legal, regulatory, tax or policy status, including ERISA, public records or freedom of information laws, tax-exempt status, Section 892 of the U.S. Internal Revenue Code, and placement agent or pay-to-play rules;

(b) any provision granted to a sovereign wealth fund, governmental plan, central bank or supranational organization by reason of that status, including Sections 2 and 3;

(c) any Management Fee, Carried Interest or expense term granted to a Seed Investor or a First Closing investor;

(d) any right to appoint a member of, or an observer to, the Advisory Committee;

(e) any co-investment right;

(f) any provision granted to the General Partner, its Affiliates or their employees; and

(g) any provision on governing law, jurisdiction, forum, dispute resolution or service of process.

Note: The General Partner may offer the text of Sections 2 and 3 to a later Governmental Investor by direct negotiation. That offer is outside the MFN process and does not make either Section electable.